

Art. 17 Right to erasure (right to be forgotten) (78.4%), Authority (67.8%), Automated Decision Making (95.9%), Data Controller (91.0%), Data Subject (94.0%), Legal Basis (96.5%), Non-Personal Data (82.3%), Organisational Measure (67.0%), Personal Data (99.8%), Processing (98.4%), Recipient (86.6%), Required Purpose (95.4%), Retention (69.5%), Right (63.1%):

To further protect your privacy, starting on or after July 1, 2022, if you have not logged in or used our services for a consecutive period of at least three (3) years, your personal information and account may be deleted automatically and without further notice.

Data Controller (93.5%), Personal Data (94.2%):

(Kongregate, the Company, we or us), are committed to respecting your privacy and the integrity and security of your personal information.

Personal Data (97.1%), Processing (98.9%), Required Purpose (84.6%):

As the data controller of certain of your personal information, we want you to know how we handle it, how we use it, process it and/or share it, as well as the ways in which you can protect your own privacy.

Consent (96.1%), Organisational Measure (62.1%), Personal Data (99.8%), Processing (99.5%), Right (97.2%), Technical Measure (61.3%):

Our Privacy Policy explains: what information we collect and how we use it; with whom we may share your information; how long we retain and how we protect the information; and what rights and options you have to control your personal data.

Data Subject (88.8%), Personal Data (99.9%), Processing (92.1%):

SCOPE: This Privacy Policy applies to any and all end users of Kongregateas services (Services).

Personal Data (71.6%), Third Party (99.4%):

Each Kongregate game that can be played through third party platforms, e.g., via consoles, PCs and/or social media sites such as Facebook is a Third Party Platform Games. Amendments to Privacy Policy.

Data Controller (96.5%), Non-Personal Data (97.1%):

PURPOSE: We, at Kongregate Inc.

Organisational Measure (85.1%), Processing (93.2%), Required Purpose (84.7%), Retention (67.1%), Third Party (98.8%):

When any changes are made, we will try to provide reasonable notice and will post the updated version on the Platform.

Organisational Measure (67.1%), Processing (83.0%):

We may also send an email, in-game message or provide notice within some or all of our Services when this Privacy Policy changes.

Personal Data (93.9%), Processing (98.1%):

General Application Clause The descriptions of how we process your personal data, your rights, and limitations to processing your personal data that are mentioned in this privacy policy apply to you when you use our services.

Legal Basis (97.2%), Scale EU (78.8%):

They are based on the rules of the General Data Protection Regulation (aGDPRa), which applies when you reside in the European Union and use our Services.

Legal Basis (95.5%):

If you do not reside in the European Union and use our Services, the descriptions of this privacy policy may not fully apply to you and other data protection laws might be applicable.

Legal Basis (99.3%), Processing (65.4%), Right (75.6%), Third Party (93.8%):

If you are a resident of the State of California, please see the Section below titled: Additional Information Regarding California Residents for detailed information according to the California Consumer Privacy Act (aCCPAa).

Authority (68.4%), Data Controller (90.1%), Data Source (86.4%), Legal Basis (70.0%), Legitimate Interest (65.0%), Personal Data (77.2%), Required Purpose (66.4%):

Privacy Policy WE HAVE UPDATED OUR PRIVACY POLICY.

Processing (78.0%), Scale EU (72.5%):

LAST UPDATED: May 21, 2024 LAST REVIEWED: September 7, 2023 TABLE OF CONTENTS
WHAT INFORMATION WE COLLECT, HOW WE USE IT & OUR LEGAL BASES FOR
PROCESSING IT WITH WHOM WE SHARE YOUR PERSONAL DATA DATA RETENTION HOW
WE PROTECT YOUR INFORMATION OUR POLICIES CONCERNING CHILDREN YOUR RIGHTS
AND OPTIONS TRANSFER OUT OF EUROPE DATA PROTECTION OFFICER QUESTIONS,
CONCERNS OR REQUESTS 1.

Legal Basis (97.2%):

The personal data that we may collect about you and the purposes for which such personal data will be used, as well as the legal basis for such processing are explained in this section.

Required Purpose (96.5%):

Visiting our Site.

Non-Personal Data (80.4%), Personal Data (99.6%), Processing (99.8%), Retention (87.7%):

In this connection the following data will be collected for a limited time period: visited website;

quantity of data transmitted; information about the type and version of the browser used; the operating system of the user; the IP address of the user; the date and time of access; and the websites from which the system of the user arrived on our Site.

Processing (98.1%), Retention (63.4%):

Such data will be stored in log files of our system.

Data Processor (61.1%), Required Purpose (89.9%), Retention (74.9%), Technical Measure (72.5%):

Such data are needed only to analyze any malfunctions and will be deleted in approximately 30 days.

Processing (97.9%):

The legal basis for temporarily storing data in log files is Article 6(1)(f) of the General Data Protection Regulation (GDPR).

Processing (81.2%), Required Purpose (73.8%), Retention (62.5%):

Temporary storage of the IP address for the system is necessary for making the Site available to the terminal device of the user.

Retention (93.7%):

For this purpose, the IP address of the user must be stored for the duration of the session.

Required Purpose (89.5%):

Data is stored in log files to ensure the functionality of our Site.

Required Purpose (96.0%):

In addition, such data is used to optimize the Site and to ensure the security of our IT systems.

Organisational Measure (68.1%), Personal Data (68.0%):

Data will not be analyzed for marketing purposes in this connection, and we will draw no inferences as to your identity.

Legal Basis (72.0%), Legitimate Interest (94.8%), Required Purpose (66.0%):

The aforementioned purposes also provide the basis of our legitimate interest in data processing within the meaning of Article 6(1)(f) of GDPR.

Processing (98.5%), Required Purpose (70.0%):

Collecting data to make available the Site and storing data in log files is necessary for operating the Site.

Art. 21 Right to object (84.7%), Processing (98.9%), Required Purpose (67.0%):

Consequently, users have no right to object to the collection or use of such data for the aforementioned purposes.

Personal Data (99.7%), Processing (60.3%):

If you communicate with us via email or telephone, we process all personal data you disclose to us during our conversation (e.g., your name, email address, telephone number, the reason why you are contacting us etc.).

Data Source (62.7%), Non-Personal Data (83.5%), Personal Data (99.7%):

If you ask for help from our customer support team, we will collect and store the contact information you give them (generally, your name and email address) as well as information about your game play or activity on our Services, and your Kongregate username and/or social network ID number.

Processing (96.9%):

Recipients of the processed personal data are our respective internal employees that are responsible for pursuing our purposes for the processing (e.g., someone from a department that you are contacting with a request).

Contract (83.6%), Personal Data (60.6%), Processing (89.7%), Required Purpose (89.2%):

Depending on the specific conversation with you, the personal data can either be processed in order to take steps at your request prior to entering into a contract with us or to perform a contract you have concluded with us.

Required Purpose (89.1%):

Also, the processing can be necessary for us to comply with legal documentation obligations.

Legitimate Interest (87.0%):

The processing can also be necessary for the purposes of our legitimate interest to respond to mails and calls of yours when you contact us and are not our contractual partner as well as to have proof regarding substantial content of our conversation, including but not limited to cases of potential legal claims on our or your side.

Personal Data (84.6%), Required Purpose (93.5%):

We may also store the communications you have with the Customer Support team in order to provide you support and improve the Services.

Retention (92.2%):

The data is stored at least for the time until our contract with you is fully performed.

Retention (88.0%):

If the data has been stored in order to take steps at your request prior to entering into a contract with us, we will store the data for as long as reasons objectively exist to believe that the respective conversation will be continued within the foreseeable future.

Legal Basis (95.9%), Personal Data (96.6%):

Storage may also take place if this has been provided for by legal regulations such as directives, laws or other regulations to which the controller is subject.

Processing (68.4%), Retention (83.5%):

Data will also be blocked or deleted if a storage period prescribed by the aforementioned standards expires.

Consent (68.7%):

When you register for an account (Account), we process the following required data of yours: username, email address and whether or not you are a Child.

Contract (72.4%):

We process the required data to enter into and perform a contract with you (Account contract) so you can use our Services.

Consent (87.3%), Processing (77.3%), Retention (91.7%):

Your Account data is stored for as long as you maintain your Account, which can be closed anytime at your request.

Automated Decision Making (86.1%), Required Purpose (78.1%):

To protect your privacy, your Account will be automatically closed and any such associated data automatically deleted after three (3) or four (4) years of inactivity, as further explained in Section 3.

Non-Personal Data (93.2%), Required Purpose (84.8%):

This will allow you to participate in content that crosses between the Sites and Apps, such as Kongregate level, points, and badges.

Personal Data (97.0%):

When you place an order with us through our Platform we will request certain information from you, including, your name, email address, payment card details, billing address and phone number.

Data Processor (69.5%), Required Purpose (98.9%):

We use a third party payment processor for this service.

Required Purpose (94.6%):

This information will be used to process your order, arrange delivery of your order and correspond with you in relation to your order.

Required Purpose (76.3%):

Recipients of the processed personal data are our respective employees that are responsible for fulfilling our Services.

Processing (95.1%):

If you do not agree with the changes, then unfortunately, we must ask you to cease using our

Platform and/or Services, as we must have all users under the same terms in order to provide equitable Services to all.

Data Controller (79.3%), Third Party (68.7%):

Our Site therefore links to the website of Facebook, operated by Facebook Inc., 1 Hacker Way, Menlo Park, CA 94025, U.S.A., or, if you reside in the EU, Facebook Ireland Ltd., 4 Grand Canal Square, Grand Canal Harbour, Dublin 2, Ireland, (Facebook).

Processing (70.9%):

Otherwise, no data is exchanged with Facebook on our Site.

Processing (99.3%):

For further information how Facebook processes personal data:
<https://www.facebook.com/about/privacy/update>.

Third Party (66.8%):

Our Site also links to the website of Twitter, operated by Twitter Inc., 1355 Market Street, Suite 900, San Francisco, CA 94103, U.S.A.

Retention (69.2%):

As of January 2022, Kongregate no longer hosts forums or chat rooms.

Personal Data (98.5%):

When you do this, we process your username, date of your post and content of your post.

Personal Data (68.3%), Processing (66.4%):

However, if you had posted in a forum prior to January 2022, then your previous posts are still publicly visible.

Third Party (74.7%):

The personal information that you post voluntarily through the Platform may be visible to others.

Required Purpose (90.0%):

We process the data to perform a contract with you so you can use our Service.

Contract (76.8%):

Should you violate our terms of use (e.g., post offensive content) we will save such posts to prove the violation.

Legitimate Interest (83.7%), Required Purpose (88.1%):

We have a legitimate interest in making sure that the rules for participating in our forum are followed and toxic behavior of users can be properly sanctioned to ensure a friendly and respectful space for everyone.

Retention (94.8%):

The data is stored at least for the duration of the contract with you.

Legal Basis (99.0%), Retention (89.2%):

If entitlements to claims arise from the contract we store the data for the respective limitation period according to the applicable law.

Legitimate Interest (62.5%), Personal Data (99.7%), Retention (98.1%):

Personal data that is processed based on our legitimate interest, will be stored as long as it is covered by such legitimate interest.

Data Source (74.7%), Personal Data (99.7%):

We collect the following types of personally identifiable information: your contact information (such as name, postal or email address, or phone number), username and password, purchase history on our Platform, game play preferences (such as an interest in a particular type of game or genre), information you provide by interacting with us through social media, and photographs that you submit on our Platform or through our social media channels.

Personal Data (83.1%):

Should you have any questions about the changes, you are welcome to contact us at support@kongregate.com.

Personal Data (92.1%), Processing (81.1%), Required Purpose (92.8%), Technical Measure (99.1%), Third Party (78.2%):

Kongregate, Kongregate affiliates, and our third-party partners in analytics, user acquisition, and advertising, use technologies such as cookies, beacons, tags, and scripts, to analyze trends, administer the Site, track users' movements around the Site, and gather demographic information about our user base as a whole.

Non-Personal Data (91.4%), Personal Data (97.8%), Required Purpose (76.7%), Retention (63.8%):

When you visit our Platform, we automatically collect the following types of information: information about the devices you use to access the Internet (such as the IP address and the device, browser, and operating system type), URLs that refer you to our Platform and the dates and times of your visits, information on your gaming behavior on our Platform (e.g., page views, paths you take through our Sites, frequency of visits, referring/exit pages), general geographic location information (e.g., country) that shows where you are when browsing our Sites, search terms that you enter to reach our Sites or enter on our Sites to find products, and the fact that you opened one of our emails.

Required Purpose (97.6%):

We utilize analytics services to help us track the efficacy of our Platform and help us learn more about our users behavior.

Third Party (97.7%):

Information We Receive from Third Parties.

Third Party (74.0%):

As previously noted, you can play Kongregate games through third party consoles or third party social media sites such as Facebook.

Non-Personal Data (98.3%), Personal Data (98.9%), Third Party (86.0%):

When you play these Third Party Platform Games, backend system vendors may collect and share your information with us such as player IDs, session information, and purchase data, as well as personal information including email address, gender, and birthday and/or age range.

Non-Personal Data (96.3%):

WHAT PERSONAL INFORMATION WE COLLECT, HOW WE USE IT & OUR LEGAL BASES FOR PROCESSING IT When you access, connect to, sign up to, participate in, create an account for, make purchases within or otherwise use our Services, we may collect personal data from you.

Third Party (90.3%):

Because such services are offered through a third party, this collection of information is governed by the applicable third party's privacy policy.

Data Source (79.3%), Personal Data (98.8%), Required Purpose (79.3%), Third Party (90.5%):

Such advertising partners have a legitimate interest to collect and profile personal data in the form of IP address and cookie ID from users on our Site in order to provide targeted online advertising and ad measurement.

Technical Measure (92.3%):

Your use of the Services are subject to this Privacy Policy, the Cookie Policy (which is incorporated into the Privacy Policy) and the Terms of Service.

Technical Measure (90.1%):

As further described in our Cookie Policy, we automatically collect information through cookies and other similar technologies (e.g., web beacons, pixels, ad tags and device identifiers) to recognize you and/or your device(s).

Required Purpose (92.4%):

Cookies allow us to identify and authenticate visitors, track behavior, and enable important site features.

Organisational Measure (73.5%):

You can control cookies through your browser settings and other tools.

Third Party (80.7%):

Service Providers.

Data Processor (81.5%), Personal Data (61.6%), Processing (91.6%), Required Purpose (82.8%):

We may use third party service providers to perform services for us such as to provide the infrastructure and IT services (including but not limited to data storage), process credit and debit card transactions, to provide customer services, collect debt analysis and improve data and process customer inquiries and perform other statistical analyzes.

Art. 16 Right to rectification (66.7%), Third Party (71.5%):

In the performance of these services, the third party vendors may have access to your personal data but are only authorized to process it strictly on our behalf and in accordance with our instructions.

Required Purpose (97.5%):

We have advertising on our Services so we can continue to offer many of our Services for free.

Non-Personal Data (76.5%), Required Purpose (95.7%):

Subject to your settings, we provide certain information to advertisers who will use them to serve you with ads in our Platform, and we measure who sees and clicks on their ads.

Non-Personal Data (92.2%), Required Purpose (98.9%), Third Party (99.3%):

We may also use aggregate information to monitor usage of our Services in order to help us improve and develop our Services, and we may provide such aggregate information to third parties, e.g., content partners or advertisers.

Non-Personal Data (92.5%), Personal Data (99.1%), Third Party (99.2%):

When advertisers, ad networks or user acquisition partners place ads in our Services, they may collect or we may share the following types of information from within our Services: performance data (like the number of clicks on an advertisement); aggregated and/or de-identified information about you and other players collectively that is not intended to specifically identify you (like players between the ages of 21 and 25 who live San Francisco); certain technical information (for example, IP addresses, non-persistent device identifiers such as IDFAs, and de-identified persistent device identifiers such as a hashed Android ID); your social network ID; and other contextual data about your game play (for example, your level and session length).

Required Purpose (80.7%), Technical Measure (95.9%), Third Party (64.5%):

The information collected may be used to: measure how effective ads are, to offer you targeted advertising in order to personalize your experience by showing you advertisements for products and

services that are more likely to appeal to you (a practice known as behavioral advertising), and/or undertake web analytics (e.g., Google Analytics which is used to analyze traffic and other player activity to improve your experience).

Technical Measure (98.9%):

Advertisers or ad networks may collect this information through the use of tracking technologies like browser cookies and web beacons.

Retention (79.7%):

After clicking on a third party advertisement, you may no longer be on our Platform.

Third Party (98.9%):

The third party sites are operated by companies that are outside of our control, and your activities at those sites will be governed by the policies and practices of those third parties.

Recipient (92.1%), Third Party (75.7%):

Our Services may display an offer wall that is hosted by an offer wall provider.

Personal Data (80.3%), Processing (86.7%), Required Purpose (99.2%):

To properly credit player accounts and to prevent fraud, a unique identifier, in some cases your Kongregate username/ID, will be shared with the offer wall provider.

Third Party (98.4%):

Third Party Developers.

Third Party (99.3%):

Most of the games on our Platforms are created by third party developers.

Personal Data (76.8%), Required Purpose (75.1%):

These third party developers may request, by using Kongregate's SDK and APIs, certain publicly visible information about users that play their games, e.g., your username, your user_id (a numeric ID associated with your account that persists even if a username is changed) In order to fix bugs.

Legal Basis (95.0%), Organisational Measure (60.1%), Processing (81.3%):

We may also disclose your personal data to third parties, if we reasonably believe that disclosure of such personal data is necessary: to comply with valid legal obligations including subpoenas, court orders, governmental requests or search warrants, and as otherwise authorized by law.

Required Purpose (82.3%):

to protect our rights, property, or the safety of our customers, employees or the general public..

Required Purpose (68.1%):

to protect against fraudulent, malicious, abusive, unauthorized or unlawful use of our Services and to protect our network, services, devices and users from such use.

Required Purpose (74.0%):

We have an interest in providing our Services without fraud.

Legitimate Interest (79.5%), Required Purpose (96.4%):

to advance or defend against complaints or legal claims.

Required Purpose (94.9%):

to determine credit risk.

Required Purpose (69.2%):

We have an interest to assess credit risks in order to protect our economic interest.

Required Purpose (98.7%):

or to obtain payment for our Services.

Recipient (74.8%):

to outside auditors and regulators in case of legal obligations.

Recipient (66.4%):

In the event of a change of control, sale of some or all of our business or assets, corporate reorganization or bankruptcy, we would share the pertinent customer information (which may include your personal information) with the other business entity (or entities) involved in the transaction.

Consent (91.6%):

In such an event, we would notify you via email and/or a prominent notice on our Platform of any change in ownership or uses of your personal information, as well as any choices you may have regarding your personal information.

Non-Personal Data (96.2%), Processing (99.3%), Right (62.3%):

We reserve the right to change our practices and to amend this Privacy Policy at our discretion and at any time.

Retention (86.4%):

DATA RETENTION In the following you can find information on how long we store personal data in our systems which we have collected from you during your use of our Services.

Retention (85.3%):

We adhere to a data retention policy that involves the retention of personal data from active users while concurrently deleting the data of inactive users who satisfy the subsequent criteria: Annual deletion of user accounts that have not engaged in any form of login activity over the course of at least three consecutive years.

Authority (93.9%), Personal Data (72.5%), Processing (88.8%), Retention (81.7%):

Furthermore, in compliance with legal authorities, we will keep a record of financial transactions in

an anonymized form for the period of time required by law.

Organisational Measure (95.2%):

HOW WE PROTECT YOUR INFORMATION We strive to maintain the security of your personal information through a variety of security measures.

Technical Measure (73.1%):

Personal data that you provide to us is stored on secure servers, and we use rigorous procedures to protect against loss, misuse, unauthorized access, alteration, disclosure, or destruction of your personal data.

Personal Data (97.6%):

It is important for you to protect against unauthorized access to any login or password information, and to your computer or device.

Personal Data (86.0%):

To minimize the risk of having your account being compromised, we recommend that you set up your account password using unique numbers, letters and special characters.

Organisational Measure (71.4%), Required Purpose (80.5%):

Please notify us of any password compromises and change passwords periodically to maintain account protection.

Scale Non-EU (90.6%):

No one under the age of 13 within the United States (or up to the age of 16 for children located in certain European countries)(collectively, Children) may provide any personal information to us, and we do not knowingly collect information from Children except in connection with the following Apps which Kongregate has designated as directed to Children (collectively, our Children-Appealing Games).

Consent (66.5%), Personal Data (89.6%):

We urge parents to instruct their children to never give out their real names, addresses or phone numbers without permission.

Consent (96.9%), Legal Basis (85.8%), Processing (96.7%):

When we intend to collect personal information from Children, we take additional steps to protect children's privacy, including: In accordance with applicable law, and our practices, obtaining consent from parents for the collection of personal information from their children, or for sending information about our Services directed to Children; Limiting our collection of personal information from Children to no more than is reasonably necessary to participate in an online activity; and Giving parents access or the ability to request access to personal information we have collected from their

Children and the ability to request that the personal information be changed or deleted.

Personal Data (98.5%):

With the exception of a handful or so of our Children-Appealing Games, Children should not attempt to create an account or send any of your information to us, including your name, address, telephone number or email address.

Required Purpose (80.5%):

If Kongregate learns that we have collected personal information from Children without verification of parental consent in contravention of these measures, we will terminate access to the account immediately and will take all reasonable measures to delete such information from its databases and to not use such information for any purpose (except where necessary to protect the safety of the child or other as required or allowed by law).

Right (74.9%), Scale Non-EU (72.1%):

Right to Remove Posted Information a California Minors.

Art. 17 Right to erasure (right to be forgotten) (72.3%):

If you are under 18 years of age, reside in California, and have a registered account on the Platform, or through the Third Party Platform Games, you have the right to request removal of unwanted information that you publicly post on the Platform, or through the Third Party Platform Games.

Scale Non-EU (80.8%):

To request removal of such information, you can contact Kongregate using the email address associated with your account at support@kongregate.com stating that you reside in California.

Art. 15 Right to access by the data subject (75.9%):

Your rights under GDPR include the following: Right to access your personal data.

Art. 16 Right to rectification (88.4%), Personal Data (87.0%):

You have the right to obtain confirmation from us as to whether or not personal data concerning you are being processed, and, where that is the case, access to the personal data and information.

Art. 16 Right to rectification (87.4%):

Right to rectification of personal data.

Art. 18 Right to restriction of processing (91.6%):

Right to restriction of processing.

Art. 17 Right to erasure (right to be forgotten) (92.7%):

Right to erasure of personal data (right to be forgotten).

Art. 17 Right to erasure (right to be forgotten) (66.0%):

Please also note that any requests for removal do not ensure complete or comprehensive removal

of the content or information from the Services.

Third Party (97.8%):

For example, content that you have posted may be republished or reposted by another user or third party.

Data Subject (64.4%), Processing (97.6%):

We shall communicate any rectification or erasure of personal data or restriction of processing carried to each recipient to whom the personal data have been disclosed, unless this proves impossible or involves disproportionate effort.

Art. 20 Right to data portability (78.3%):

Right to data portability.

Automated Decision Making (88.1%):

If your personal data is processed by automated means based on your consent or for the fulfillment of our contractual relationship, you have the right to request that we provide you with your personal data in a machine-readable format for transmission to another data controller.

Consent (79.0%):

Under certain circumstances, such as if your personal data has been unlawfully processed or you have withdrawn your consent (if the processing of your personal data is based on consent), you have the right to request and obtain erasure of your personal data from us, subject to certain exceptions.

Art. 21 Right to object (91.2%):

Right to object to processing.

Art. 21 Right to object (61.7%):

Under certain circumstances, such as if you question our legitimate interest to process your personal data, you have the right to object, on grounds relating to your particular situation, to such processing.

Right (68.2%):

Right to revoke the declaration of consent.

Consent (81.1%):

Revocation of your consent does not affect the legality of the processing that has taken place on the basis of your consent until revocation.

Automated Decision Making (93.6%):

We do not use automated decision making processes.

Automated Decision Making (89.9%):

While you would have the right not to be subject to a decision based solely on automated processing which produces legal effects that similarly significantly affects you, this would not apply for our Platform as we do not use automated individual decision-making.

Authority (93.8%), Lodge Complaint (81.7%):

Right to lodge a complaint with a supervisory authority.

Lodge Complaint (72.3%), Personal Data (82.6%):

You have the right to lodge a complaint regarding our processing of your personal data with the supervisory authority of your place of residence, place of work or place of the alleged infringement.

Right (73.4%):

At the risk of stating the obvious, we want to be clear that we will not discriminate against you for exercising any of your CCPA rights or other privacy rights.

Required Purpose (81.1%):

Unless permitted by CCPA, we will not take any discriminatory actions, including, denying you goods or services, charging you different prices or rates for goods or services, including through granting discounts or other benefits, or imposing penalties; providing you a different level or quality of goods or services; or suggesting that you may receive a different price or rate for goods or services or a different level or quality of goods or services.

Organisational Measure (70.7%):

We will use commercially reasonable efforts to respond to your request within 30 days of receiving such request.

Processing (74.5%):

Each time a user accesses our Services, the Platform or Third Party Platform Games, the then current version of the Privacy Policy applies, and you agree that the information we collect will be subject to the Privacy Policy, as updated.

Consent (99.1%):

We retain and use your information as necessary as described in Data Retention. Opting Out of Promotional Emails from Kongregate.

Consent (75.7%):

If you are receiving Kongregate promotional emails due to prior consent and no longer wish to receive those email messages, you may opt out at the time you receive the message by following the instructions in that email, clicking on the unsubscribe link in our emails or contacting us at support@kongregate.com.

Processing (77.7%):

You can manage these updates from the settings page from within the App or from your device control panel that manages these notifications.

Processing (95.8%):

Please note that once Kongregate receives any personal information from a social media site as a result of a user playing Third Party Platform Games, it will be stored and handled in accordance with this Privacy Policy.

Required Purpose (97.1%), Technical Measure (98.4%):

In order to improve and optimize our Service continuously, we use mobile tracking technologies.

Non-Personal Data (90.3%), Required Purpose (98.9%):

With the help of these services, we collect data on the usage of our Apps to be able to constantly improve our Services.

Non-Personal Data (98.2%), Personal Data (98.9%):

In this respect, we may collect: IP address, which is anonymized right away, MAC address, anonymized Device ID (Identifier For Advertisers (IDFA)) or Google Advertiser ID (GAID), browser type, language settings, internet service provider, network status, time zone, URL of the entry and exit pages, date of access and time spent, clickstream data, and other statistical information about the use of our Services.

Consent (67.9%):

If you have previously allowed us to access your geolocation data, you can stop making geolocation available to us by visiting your mobile device's settings for the relevant application or the settings page for the relevant App.

Consent (86.3%):

iPhone or iPad) and select the menu item Privacy. Under Advertising, you can turn off the Ad Tracking.

Technical Measure (96.7%), Third Party (79.8%):

We use internal and third party analytics tools, including Google Analytics.

Required Purpose (93.5%):

These user profiles serve to analyze visitor behavior and are evaluated in order to improve and design our offer so as to meet the demands.

Third Party (75.7%):

Each of www.kongregate.com, www.kartridge.com, and all other sites or online services that are owned or operated by Kongregate currently or in the future is a Site, and collectively, the Sites. Each mobile game published or operated by Kongregate currently or in the future is an App, and

collectively, the Apps, (and together with the Sites, the Platform).

Authority (66.1%):

Do Not Track is a concept that has been promoted by regulatory agencies such as the U.S.

Personal Data (65.0%), Processing (71.2%):

Federal Trade Commission (FTC), for the Internet industry to develop and implement a mechanism for allowing Internet users to control the tracking of their online activities across websites by using browser settings.

Personal Data (75.8%):

You have the right to revoke your data protection declaration of consent at any time.

Processing (93.0%), Scale EU (61.7%), Scale Non-EU (82.1%):

The personal data that we collect from you may be transferred to and stored at a destination outside the European Economic Area (EEA) and Switzerland, including at destinations that are not subject to a decision by the European Commission establishing an adequate level of protection of personal data.

Third Party (70.8%):

Your personal data can be shared with other companies owned by our parent company, processed by staff working for us or for one of our suppliers, or shared with certain third parties who may be located outside the EEA and Switzerland.

Contract (69.2%):

We will take all reasonable necessary steps, including entering into data processing agreements using standard contractual clauses, to ensure that your personal data is treated securely and in accordance with this Privacy Policy and have adopted appropriate safeguards to protect it.

Legal Basis (89.4%):

Kongregate is the 'Controller' in line with GDPR and other applicable data protection laws.

Data Protection Officer (87.7%):

You can contact our Data Protection Officer at: Kongregate Inc.

Right (82.2%):

Please check the following privacy policies to learn more about their privacy practices, including how you may exercise your data subject rights.

Processing (92.6%), Scale Non-EU (74.5%):

If you are an EU resident, we rely on certain safeguards when sharing your personal data with a recipient established outside of the EEA/EU.

Scale Non-EU (72.7%):

Some vendors with which we share your personal data are established outside of the European Union.

Data Subject (62.6%), Recipient (65.4%):

We will inform you about those recipients if you request it.

Personal Data (99.6%), Required Purpose (84.4%), Retention (74.6%):

Collection and Disclosure of Personal Information The chart below details which categories of Personal Information about California residents we plan to collect, as well as which categories of Personal Information we have collected and disclosed for our operational business purposes in the preceding 12 months.

Required Purpose (84.9%):

We may disclose your Personal Information to a third party for a business purpose.

Personal Data (99.5%):

Personal information means information that identifies, relates to, describes, is reasonably capable of being associated with, or could reasonably be linked, directly or indirectly, with a particular you as consumer or a household.

Third Party (63.4%):

Categories of Personal Information Disclosed to Which Categories of Third Parties for Operational Business Purposes Retention Period Personal information as defined in the California customer records law, such as name, contact information and government-issued ID Affiliates, service providers, business partners in case of contest, sweepstakes, and promotion, legal authorities Annual deletion of user accounts that have not engaged in any form of login activity over the course of at least three consecutive years.

Personal Data (84.3%):

Internet or network activity information, such as interactions with our online properties Affiliates, service providers, business partners in case of contest, sweepstakes, and promotion, legal authorities Annual deletion of user accounts that have not engaged in any form of login activity over the course of at least three consecutive years.

Personal Data (88.0%):

Geolocation Data, such as approximate location derived from IP address Affiliates, service providers, business partners in case of contest, sweepstakes, and promotion, legal authorities Annual deletion of user accounts that have not engaged in any form of login activity over the course of at least three consecutive years.

Required Purpose (83.4%):

We may use or disclose the personal information we collect for one or more of the following business purposes: To fulfill or meet the reason for which the information is provided.

Required Purpose (95.0%):

To provide you with information, products or services that you request from us.

Required Purpose (84.2%):

To provide you with email alerts, event registrations and other notices concerning our products or services, or events or news, that may be of interest to you.

Contract (60.4%), Required Purpose (81.0%):

To carry out our obligations and enforce our rights arising from any contracts entered into between you and us, including for billing and collections.

Required Purpose (97.0%):

To improve our website and present its contents to you.

Required Purpose (71.3%):

As necessary or appropriate to protect the rights, property or safety of us, our clients or others.

Required Purpose (60.6%):

We maintain an online presence on social networks and platforms to communicate with clients, interested parties, and users who are active on those networks, and to be able to inform clients, interested parties, and users of our Services.

Legal Basis (81.7%), Required Purpose (78.5%):

To respond to law enforcement requests and as required by applicable law, court order, or governmental regulations.

Legal Basis (72.2%):

We may disclose information upon governmental request, in response to a court order, or when required by law to do so.

Processing (97.8%):

As described to you when collecting your personal information or as otherwise set forth in the CCPA.

Processing (65.5%), Required Purpose (83.9%):

To evaluate or conduct a merger, divestiture, restructuring, reorganization, dissolution, or other sale or transfer of some or all of our assets, whether as a going concern or as part of bankruptcy, liquidation, or similar proceeding, in which personal information held by us is among the assets transferred.

Organisational Measure (64.2%):

We will not collect additional categories of personal information or use the personal information we collected for materially different, unrelated, or incompatible purposes without providing you notice.

Personal Data (96.8%):

Sensitive personal information includes personal data that discloses: Government-issued identification numbers like social security, driver's license, state identification card, or passport numbers.

Personal Data (99.3%):

Financial information such as account log-in, financial account, debit card, or credit card numbers when combined with security codes, passwords, or access credentials to access an account.

Non-Personal Data (74.3%), Personal Data (94.8%):

Details about racial or ethnic origin, religious or philosophical beliefs, or membership in a union.

Personal Data (85.4%):

The contents of your mail, email, and text messages, but only if the entity receiving the information is not the intended recipient.

Processing (74.6%):

Upon receiving such a request, Kongregate will make sure that the information is not publicly available on our Platform, or through our Third Party Platform Games.

Art. 17 Right to erasure (right to be forgotten) (83.0%):

Your Rights If you are a resident of California, you have the following rights: Right to Delete Personal Information: You have the right to request that we delete your Personal Information.

Art. 17 Right to erasure (right to be forgotten) (62.5%):

Account Information.

Art. 16 Right to rectification (88.0%):

Right to Correct Inaccurate Personal Information: You have the right to request the correction of Personal Information we maintain about you (Section 1798.106 CCPA).

Processing (88.8%):

The business or commercial purpose for collecting, selling, or sharing personal information.

Personal Data (62.0%):

The specific pieces of personal information we have collected about you.

Processing (75.0%):

The categories of personal information that we sold or shared about you and the categories of third parties to whom the personal information was sold or shared, by category or categories of personal information for each category of third parties to whom the personal information was sold or shared.

Not Required Purpose (62.9%):

Right to Opt-Out of Sale and Sharing: We do not sell your Personal Information.

Required Purpose (86.8%):

We share your Personal Information with advertising partners to show you ads that might be more interesting to you.

Art. 18 Right to restriction of processing (89.6%), Required Purpose (88.1%):

Right to Limit the Use and Disclosure of Sensitive Personal Information: Even though we do not process Sensitive Personal Information of yours, we'd like to also inform you that you principally have the right to limit the use or disclosure of your Sensitive Personal Information should we be using such data of yours beyond what is reasonable and proportionate to provide the requested services or other purposes permitted by the CCPA (Section 1798.121 CCPA).

Right (64.9%):

Right of information: You have the right to be provided information regarding the processing of your personal data by us, in accordance with Art.

Art. 15 Right to access by the data subject (72.3%):

Right of access: You have the right to obtain confirmation as to whether we are processing your personal data and, if this should be the case, access to the personal data, in accordance with Art.

Art. 17 Right to erasure (right to be forgotten) (92.3%):

Right to erasure (right to be forgotten): Under certain circumstances you have the right to obtain the erasure of personal data concerning you, in accordance with Art.

Art. 20 Right to data portability (88.8%):

Right to data portability: Under certain circumstances you have the right to receive the personal data concerning you, which you have provided to us, in a structured, commonly used and machine-readable format and the right to transmit this data to another controller, in accordance with Art.

Art. 21 Right to object (85.1%):

Right to object: Under certain circumstances you have the right to object to the processing of personal data concerning you, in accordance with Art.

Art. 21 Right to object (76.7%):

This includes but is not limited to the right to object in cases in which we process your personal data on the legal basis of Art.

Legal Basis (76.0%), Scale EU (71.1%):

Right to lodge a complaint: You have the right to lodge a complaint with a supervisory authority, in

particular in the Member State of the EU of your habitual residence, place of work or place of the alleged infringement if you consider that the processing of personal data relating to you infringes the GDPR, as set out in Art.

Right (71.3%):

Right to withdraw consent: If a processing of your personal data is based on your consent as set out in Art.